

Rules under clauses (a), (b) and (c) of Section 17 of the Ranchi Mental Hospital Act, 1922

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Rule RULES-UNDER-CLAUSES-A-B-AND-C-OF-SECTION-17-OF-THE-RANCHI-MENTAL-HOSPITAL-ACT-1922 of 1922

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Published vide Notification No. 4633-L.S.-G., dated the 23rd April 1923

Notification No. 4633-L.S.-G., dated the 23rd April 1923, by the Local Self-Government Department, Bihar and Orissa. -

The following Rules which have been framed by the Board of Trustees of the European Hospital for mental diseases at Ranchi under clauses (a), (b) and (c) of Section 17 of the Ranchi Mental Hospital Act, 1922 (XIII of 1922), and which the Government of Bihar and Orissa in the Ministry of Local Self-Government have been pleased to confirm under the said Section is published for general information :-

1.

Constitution of the Managing Committee.

- The Managing Committee of the Ranchi Mental Hospital shall consist of not less than seven members, all of whom shall be Trustees. The Chairman of the Board of Trustees shall be Chairman ex-officio and the Superintendent of the Ranchi Mental Hospital shall be secretary ex-officio.

2.

Method of appointment of members.

- The members shall be elected by the Board at a meeting.

3.

Terms of members.

- The term of office of a member shall expire with the expiration of the term of his appointment as a Trustee.

4.

Resignation of members.

(a)

A member of the Managing Committee wishing to resign his seat shall forward a written letter of resignation through the Secretary to the Chairman of the Board.

(b)

When the acceptance of the resignation by the Chairman of the Board has been communicated to the Secretary, the member shall be deemed to have vacated his office.

5.

Removal of members.

- The Chairman of the Board may for reasons to be recorded in writing and after taking such explanation as he may deem necessary remove from the Managing Committee any member who refuses to act, or has absented himself without sufficient cause from the meeting of the Committee for more than three consecutive months or three consecutive meetings whichever is the longer period.

6.

Filling of casual vacancies.

- When the place of member of the Managing Committee becomes vacant by reason of his resignation, removal or death, a new member shall, at the next meeting of the Board, be elected to fill the vacancy.

7.

Date, time and place of meetings.

- The Committee shall hold meetings at the Ranchi Mental Hospital at Kanke once in every month, on such day of the month and at such times as the Secretary may, in writing, notify to the members from time to time :

Provided that when there is no business to be laid before the Managing Committee at any monthly meeting the Secretary shall instead of calling the meeting give notice of the fact to each member of the Managing Committee.

8.

Special meeting.

- The Chairman may, whenever necessary summon a special meeting of the Committee stating the business to be brought before such special meeting.

9.

Notice of meeting.

- At least ten days' notice in the case of an ordinary meeting and at least seven days' notice in the case of special meeting shall be given by the Secretary to each member:

Provided that the accidental failure of a notice to reach any member within the prescribed period shall not invalidate the proceedings of a meeting.

10.

Circulation of list of business.

- The Secretary shall circulate not less than three days before each meeting to every member of the Managing Committee a list of business to be transacted at such meeting.

11.

President of meeting.

- In the absence of the Chairman, the members present shall elect one of their members to preside at such meeting.

12.

Number required for quorum.

- The quorum necessary for the transaction of business at any meeting shall be three including the Chairman.

13.

Adjournment of meetings.

- If at any meeting, a quorum is not present, the meeting shall stand adjourned to another date to be fixed by the Chairman. On such date the members present shall transact business irrespective of a quorum.

14.

Order of business.

- Business shall be transacted at meetings in the following order:-

(a)

The minutes of the last ordinary meeting or of any special meeting held since shall be read and if approved as currently entered, shall be signed by the President of such meeting.

(b)

Business postponed from the last ordinary meetings shall be considered.

(c)

Business of which due notice has been given shall be considered.

(d)

With the assent of a majority of the members present, business other than that stated in the agenda shall be considered.

15.

Decision by votes.

- (i) All questions which come before a meeting shall be decided by a majority of the votes of the members present and voting.

(ii)

In the event of an equality of votes, the President of the meeting shall have a second or casting vote.

16.

Travelling allowance

- Every non-official member of the Managing Committee shall be entitled to travelling allowance at the rates fixed for the first class officers under the Fundamental Rules of Government in respect of each meeting which he attends.

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